Non-Disclosure Agreement: Reviewers and Visitors (SAHYA-NDA-R)

SAHYA-NDA-R · version 1.1 · approved

1. Parties and definitions

This Non-Disclosure Agreement (**"Agreement"**) is entered into and made effective as on the last date of signature by a party to this Agreement (**"Effective Date"**), by and between:

1. **SahyaLabs LLP**, a limited liability partnership registered under the Limited Liability Partnership Act, 2008, LLPIN AAU-0463, registered office CRA-78, Choozhampala, Kusavarkal, Mukkola P.O., Thiruvananthapuram 695043, Kerala, India, represented by Rahul P.S., CEO (**"SahyaLabs"** or the **"Disclosing Party"**); and
2. Full name of the Recipient (as entered on the signature page)

   the person who signs this agreement electronically, whose full name is shown above as entered on the signature page of this agreement, and who is further identified by the email address, organisation (if any) and GitHub username entered there (the **"Recipient"** or the **"Receiving Party"**).

SahyaLabs and the Recipient are each a **"Party"** and together the **"Parties"**. If the Recipient signs on behalf of an organisation, the Recipient confirms that they are authorised to bind it, and "Recipient" includes that organisation.

WHEREAS:

(a) SahyaLabs owns or otherwise controls know-how, processes and designs relating to the Sahya CX1 air taxi, the VPAS pilot assist system, the SahyaAI platform and related work, which are confidential and proprietary to SahyaLabs;

(b) SahyaLabs wishes to disclose Confidential Information to the Recipient for the Purpose set out in section 2, and the Recipient is willing to receive it on the terms and conditions of this Agreement;

(c) the Parties have discussed their rights, obligations and responsibilities, and the Recipient has agreed to treat the Confidential Information furnished by SahyaLabs as confidential and not to disclose or use it except in accordance with this Agreement; and

(d) the Parties acknowledge that the disclosure of any Confidential Information under this Agreement shall not constitute or be construed as a grant, assignment, transfer, licence or conveyance of any intellectual property rights of SahyaLabs, whether patented, patent-pending or otherwise, except as expressly provided in this Agreement or pursuant to a separate written agreement executed between the Parties.

NOW, THEREFORE, the Parties agree as follows.

2. Purpose

SahyaLabs will give the Recipient access to its private repositories and related material so that the Recipient can **review or evaluate** the Sahya CX1 air taxi, the VPAS pilot assist system, the SahyaAI platform and related work (the **"Purpose"**). This agreement does not cover creating code, designs, documents or other material for SahyaLabs, which needs a separate written agreement.

3. Confidential Information

1. **"Confidential Information"** means any and all non-public, proprietary and confidential information or data, whether in written, electronic or oral form, and whether tangible or intangible, which is owned by or otherwise validly possessed or controlled by SahyaLabs or any other party acting on behalf of or under the instructions of SahyaLabs, and which is disclosed, shared or transferred to the Recipient by SahyaLabs or any other party acting on behalf of or under the instructions of SahyaLabs for the Purpose, in whatever manner, during the Term (section 10.1), including without limitation:
   (a) **Technical information:** products, processes, research data, source code, models, parameters, interfaces, data, simulation results, analyses, requirements, validation findings, safety and security assessments, know-how, specifications, operating and analytical models, computer models, formulas, flow charts, designs, drawings, diagrams, sequences, methods, manuals, techniques, technologies, technology issues, patterns, prototypes and unpublished testing records;
   (b) **Inventions and intellectual property:** inventions (whether patentable or not), concepts and ideas (whether copyrightable or not), unpublished trademarks, unpublished designs and any other unpublished intellectual property rights;
   (c) **Manufacturing and quality:** manufacturing data, compositions, compounds, raw materials, formulations, packaging (including samples), standard operating processes, quality assurance procedures, quality control processes and quality management systems;
   (d) **Business and commercial information:** strategies, project approaches, business, financial, funding, regulatory and certification plans, project plans and schedules, commercial information on manufacturing, development or scale-up costs, information technology programs, software systems, vendor management systems, inventory systems, vendor lists, value-chain partner lists, client and customer lists, and supplier and customer information;
   (e) **Repositories and discussions:** the contents of the repositories `SahyaAI/sahya_ai`, `SahyaAI/sahya_tracker` and any other private SahyaLabs repository, including their history, issues, pull requests, CI results and generated documents, and the existence and content of discussions with SahyaLabs; and
   (f) **Derived material:** anything the Recipient derives from any of the above (notes, summaries, copies, analyses).
2. Confidential Information also includes:
   (a) any data or information relating to the business, finances or organisation of SahyaLabs or of any other party acting on behalf of or under the instructions of SahyaLabs;
   (b) all data and information not related to the Purpose but which is marked "CONFIDENTIAL", "PROPRIETARY" or with a similar marking;
   (c) all information gathered, overheard, seen or acquired by, or disclosed or shared with, the Recipient during a visit to an office, development centre or other premises of SahyaLabs; and
   (d) where applicable, all Personal Data (as defined under the applicable privacy laws, including, where applicable, the Digital Personal Data Protection Act, 2023) of any individual shared by SahyaLabs with the Recipient for the Purpose.

4. Exclusions

Information is not Confidential Information to the extent the Recipient can show with written records that it:

1. is known or is in the public domain at the time of disclosure to the Recipient, or enters the public domain without breach of the terms of this agreement;
2. is already known by the Recipient at the time of disclosure;

3. is developed independently of SahyaLabs and in good faith by the Recipient, without use of or reference to any of the Confidential Information;
4. is received by the Recipient from a third party who had a legal right to access, use and provide such information to the Recipient; or
5. is approved in writing by SahyaLabs for disclosure.

5. Obligations of the Recipient

The Recipient shall use the Confidential Information strictly for the Purpose only, and shall always protect the Confidential Information from theft, loss and any unauthorised disclosure, access or use. As part of this confidentiality undertaking, the Recipient shall:

1. apply such security measures (including cybersecurity measures) and degree of care while handling the Confidential Information as the Recipient applies to its own confidential information, and in any case no less than a reasonable degree of care, to prevent unauthorised access, unauthorised use, transmission, loss, unauthorised publication or theft of the Confidential Information;
2. not disclose, share or make available for access or use the Confidential Information, in whole or in part, to any third party without the express written consent of SahyaLabs, which shall not be unreasonably withheld;
3. store and use the Confidential Information only for legitimate purposes and not for any illegal, immoral or anti-competitive activity;
4. not copy, download, clone or store the Confidential Information beyond what the Purpose needs, keep any clone on devices under the Recipient's control with full-disk encryption, and not fork, mirror or re-host the repositories;
5. not create or store additional physical or electronic copies of the Confidential Information except as strictly necessary for the Purpose, and duplicate, store, use and dispose of any such copies only in accordance with this agreement;
6. not upload, paste or otherwise submit Confidential Information to any third-party service (including AI assistants, code-analysis or translation services) unless SahyaLabs has approved that service in writing;
7. keep their GitHub account secure (two-factor authentication on, credentials not shared) and tell SahyaLabs without delay of any lost device, account compromise or suspected disclosure;
8. not analyse, disassemble, reverse-engineer, decompile or attempt to derive source code, models or data from any SahyaLabs material beyond what is disclosed, or otherwise attempt to identify or de-camouflage the Confidential Information or any part of it, without the express prior written consent of SahyaLabs; and
9. comply with applicable export-control and sanctions laws for any technical information received.

6. Disclosure required by law

If the law, a court or an authority requires the Recipient to disclose Confidential Information, the Recipient shall, where lawful, tell SahyaLabs promptly, help SahyaLabs seek protection, and disclose only what is required.

7. No transfer of ownership

1. All Confidential Information, including all intellectual property rights in it, shall remain the property of SahyaLabs, and the Recipient shall not acquire any rights in it except the limited right to receive and review the Confidential Information for the Purpose as expressly provided in this agreement.
2. The Recipient undertakes not to apply for or obtain any patent, design, trademark, copyright or any other similar proprietary right, directly or indirectly, in connection with the Confidential Information, and

shall not use SahyaLabs' logo or trademark, whether registered or unregistered, on any analysis, compilation, study or work product prepared by the Recipient based on the Confidential Information.

3. Nothing in this agreement constitutes, or shall be interpreted as, a transfer or assignment of, or the grant of any right to the Recipient to seek registration or recordal of, any intellectual property rights associated with the Confidential Information.

8. No licence, no warranty

1. This agreement grants no licence or other right in any intellectual property, except the limited right in section 7.1.
2. Confidential Information is provided on an "as is" basis and, to the maximum extent permitted by law, SahyaLabs disclaims all warranties, express or implied, with respect to the accuracy, completeness, performance or suitability of the Confidential Information for any particular purpose. Designs and results are provisional and must not be relied on for any operational, safety or investment decision. This disclaimer does not apply to the extent of any fraud, fraudulent misrepresentation, wilful misconduct, cheating or gross negligence by or on behalf of SahyaLabs.
3. The disclaimer in section 8.2 applies only until the Parties enter into a formal, binding definitive agreement on the subject matter of their discussions. After that, the accuracy and completeness of the Confidential Information disclosed shall be assessed against the obligations in that definitive agreement.

9. Feedback

If the Recipient gives comments, findings or suggestions (**"Feedback"**), SahyaLabs may use them freely and without payment. Feedback is Confidential Information of SahyaLabs.

10. Term, termination and survival

1. **Term.** This agreement takes effect on the Effective Date and remains valid for **two (2) years** (the **"Term"**), unless either Party terminates it earlier by giving the other Party **thirty (30) days'** prior written notice. If the Parties enter into a definitive commercial or other formal binding agreement in connection with the Purpose, this agreement is automatically rescinded and superseded by that agreement.
2. **Survival.** Notwithstanding the expiry or termination of this agreement under section 10.1, the obligations of confidentiality, non-use and non-disclosure of the Confidential Information under sections 3 to 9, read with sections 11 and 12, survive for a further **five (5) years** after the expiry or termination, and for trade secrets for as long as they remain trade secrets.
3. **End of access.** When this agreement ends, or earlier if SahyaLabs so chooses, SahyaLabs shall remove the Recipient's access to its repositories, and the Recipient shall deal with the Confidential Information as set out in section 11.

11. Return or destruction of Confidential Information

1. On expiry or termination of this agreement, or during the Term on written request of SahyaLabs, the Recipient shall within **seven (7) days** either:
   (a) return to SahyaLabs all Confidential Information in its possession or direct or indirect control, including without limitation all notes, back-ups, summaries, abstracts, traces, recordings and other transcripts; or
   (b) destroy and permanently delete all clones, copies and digital files of the Confidential Information, including without limitation all emails, folders and back-up data relating to it.
2. The Recipient shall confirm in writing that it has done so. On request of SahyaLabs, the Recipient shall produce a certificate of such destruction and deletion from a third-party auditing agency.

3. The Recipient may keep one copy of the Confidential Information for its internal records solely to the extent required by law, audit or regulatory requirements, and copies that automated back-ups make impossible to delete may remain until they are overwritten. All terms of confidentiality, non-use and non-disclosure of this agreement continue to apply to and govern any copy so retained.

12. Dispute resolution and remedies

1. **Governing law:** this Agreement and any dispute or claim arising out of or in connection with it or its subject matter, including with respect to the validity and enforceability of the Agreement, shall be governed by and construed in accordance with Indian laws.
2. **Dispute resolution:** any dispute or difference arising out of or in connection with the existence, enforceability, interpretation, implementation, termination or breach or alleged breach of the Agreement (hereinafter referred to as the **"Dispute"**) between the Parties shall, in the first instance, be attempted to be resolved by conciliation amongst senior representatives of each Party within thirty (30) days of written notice by a Party to the other Party to that effect. During this period of attempted conciliation, the Parties agree not to exercise any legal recourse against the other Party except for any urgent injunctive reliefs. Any Dispute not settled by conciliation within the aforesaid period shall be resolved by arbitration by referring to a common arbitrator, if agreed upon, otherwise to two arbitrators, one to be appointed by each Party to this Agreement, who shall appoint an umpire, and the Arbitration and Conciliation Act, 1996, and subsequent amendments thereto, of India shall govern such arbitration. The seat and venue of the arbitration shall be at Thiruvananthapuram, Kerala, India and the governing laws for arbitration proceedings shall be Indian laws. The language of arbitration shall be English. Each Party shall bear their respective costs of arbitration unless otherwise decided by the arbitrator. The arbitration award shall be final and binding on the Parties.
3. **Jurisdiction:** subject to section 12.2, the courts at Thiruvananthapuram, Kerala, India shall have exclusive jurisdiction to adjudicate upon any dispute between the Parties arising from or in connection with this Agreement.
4. **Equitable relief:** the Recipient acknowledges and agrees that the Confidential Information is a valuable asset of SahyaLabs and that any disclosure or use of it in breach of this agreement will cause irreparable harm and loss to SahyaLabs for which monetary damages alone may not be a sufficient remedy. The Recipient therefore agrees that SahyaLabs shall be entitled, in addition to any monetary damages, to seek equitable relief, including without limitation injunctions, specific performance, rescission or variation, against the Recipient as a remedy for any such breach.

13. Publicity

Neither Party shall originate or take part in any press release, publicity or other public announcement, whether for a commercial purpose or otherwise, about the existence, execution or contents of this agreement without the prior written approval of the other Party.

14. Representations

Each Party represents, warrants and covenants to the other Party, as of the Effective Date, that:

1. it has the power, authority and legal right to enter into this agreement and to perform its obligations under it;
2. the execution and delivery of this agreement have been duly authorised by it, and this agreement is legal, binding and enforceable against it;
3. the execution of this agreement and the performance of its obligations under it do not conflict with applicable law and are not in breach of any court order or governmental or regulatory notification applicable to it;

4. the execution of this agreement and the performance of its obligations under it do not violate, and are not voided by, any articles of incorporation, statement of objects, bylaws or other rules governing it; and
5. the execution of this agreement and the performance of its obligations under it are not in breach of any agreement, understanding, covenant or assurance given by it to a third party.

15. General

1. **General terms:**
   (a) **Relationship between the Parties:** the Parties are and shall remain independent contracting parties. Nothing in this agreement places the Parties in the relationship of partners, joint venturers, fiduciaries, agents or an association of persons, and no similar relationship shall be deemed to exist between them. Neither Party has any right or authority to assume or create any obligation or responsibility, express or implied, on behalf of or in the name of the other Party, or to bind the other Party in any manner.
   (b) **Amendment:** no modification or amendment of any provision of this agreement is valid or binding unless it (i) is executed and delivered by the Parties in writing after the Effective Date, (ii) specifically refers to this agreement, and (iii) specifically states that it is intended to, and shall, take precedence over this agreement.
   (c) **No obligation to contract:** neither Party is under any legal obligation to enter into any further definitive agreement about their engagement for the Purpose.
   (d) **Entire agreement:** this agreement is the full and complete agreement of the Parties on the disclosure of the Confidential Information and supersedes and cancels all prior communications, understandings and agreements between the Parties on that subject, whether written or oral, express or implied.
   (e) **Assignment:** neither Party may assign or otherwise transfer, in whole or in part, any of its rights or obligations under this agreement without the prior written consent of the other Party, which shall not be unreasonably withheld.
   (f) **Severability:** if any provision of this agreement is held to be invalid or unenforceable, that provision (to the extent it is invalid or unenforceable) shall be given no effect and shall be deemed excluded from this agreement, without invalidating any of the remaining provisions.
   (g) **Waiver:** no waiver of any provision of this agreement is valid or binding unless in writing and executed by the Party against whom enforcement is sought. No waiver of any breach, and no failure of a Party to enforce any term of this agreement, affects, limits or waives that Party's right to enforce and compel compliance with all terms of this agreement, or to terminate it in accordance with its terms.
2. **Electronic signature:** the Parties agree that this agreement may be concluded by electronic records and electronic signatures. The Recipient signs by completing the signature page of the PDF of this agreement and signing it electronically with a PDF signing application such as Adobe Acrobat Fill & Sign, and returns the signed PDF to SahyaLabs by email from the email address entered on the signature page. SahyaLabs countersigns the PDF electronically and sends the Recipient a copy of the fully signed agreement. The signed PDF and the emails exchanged, with their dates and times, are evidence of signature.
3. **Personal data:** SahyaLabs processes the Recipient's signing details only to manage access and this agreement, keeps them while this agreement and its obligations last, and handles them under the Digital Personal Data Protection Act, 2023. Contact: info@sahyalabs.com.

16. Signature

Signed electronically by the Recipient (name, email, organisation, GitHub username and date as entered on the signature page), and by SahyaLabs through Rahul P.S., CEO, as set out in section 15.2.

Signatures

By signing, the Recipient confirms having read this agreement (SAHYA-NDA-R v1.1) and agrees to it. Fields marked * are required. The full name entered here also appears in section 1. Fill in the fields, sign in the box with a PDF signing application such as Adobe Acrobat Fill & Sign, and email the signed PDF to info@sahyalabs.com from the email address entered below. SahyaLabs countersigns and returns a copy of the fully signed agreement.

Recipient

Full name *

Email address *

Organisation (if signing for one)

GitHub username *

Signature of the Recipient *

Sign here (Fill & Sign: Sign, then place the signature)

Date (DD-MM-YYYY) *

SahyaLabs

For SahyaLabs: name and title

Date

Signature for SahyaLabs

Sign here (Fill & Sign: Sign, then place the signature)